

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Criminal Procedure (Scotland) Act, 1887 ...	50 & 51 Vict. c. 35.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Firearms Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 12.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 43.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.
Agriculture (Scotland) Act, 1948	11 & 12 Geo. 6. c. 45.
Summary Jurisdiction (Scotland) Act, 1954 ...	2 & 3 Eliz. 2. c. 48.
Crofters (Scotland) Act, 1955	3 & 4 Eliz. 2. c. 21.
House of Commons Disqualification Act, 1957	5 & 6 Eliz. 2. c. 20.

CHAPTER 41

An Act to amend the law relating to the formation of
additional courts of quarter sessions in boroughs.
[9th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Additional
courts of
quarter
sessions in
certain
boroughs.
4 & 5 Eliz. 2.
c. 34.
45 & 46 Vict.
c. 50.

1.—(1) In section fifteen of the Criminal Justice Administration Act, 1956 (which provides that the power of the recorder under section one hundred and sixty-eight of the Municipal Corporations Act, 1882, to order a second court to be formed shall extend to the formation of more than one additional court, up to such number as may be authorised by the resolution of the borough council enabling him to exercise his powers under that section), at the end there shall be added the following subsection, that is to say—

“(6) Where in the case of any borough—

- (a) the power of the recorder under the said section one hundred and sixty-eight to order a second court to be formed is exercisable by virtue of a local Act without the authority of a resolution of the borough council; and
- (b) it has been certified to the recorder in writing signed by the mayor or two aldermen or the town clerk that the council have resolved that it is expedient for the additional powers conferred by this section to be exercisable,

this section shall have effect in relation to that borough as if for the reference in subsection (1) of this section to the resolution therein mentioned there were substituted a reference to the resolution mentioned in paragraph (b) of this subsection; and such a resolution and certificate as are mentioned in the said paragraph (b) shall, if the resolution so provides, continue in force for the period of twelve months beginning with the date of the resolution, and if they so continue in force no fresh resolution or certificate shall be required during that period ”.

(2) In paragraph (a) of subsection (6) of the said section one hundred and sixty-eight (which provides that a recorder shall not exercise the powers given by that section unless it has been before each quarter sessions certified to him that the council of the borough have resolved that it will be expedient that those powers be exercised), the words “ before each quarter sessions ” are hereby repealed; and any reference in the said section one hundred and sixty-eight or in the said section fifteen as amended by the foregoing subsection to the council of a borough shall be construed as a reference to that council or the appropriate committee thereof.

(3) Without prejudice to subsection (3) of the said section fifteen (which relates to the remuneration of assistant recorders, assistant clerks of the peace and additional criers), in section sixty-one of the Birmingham Corporation Act, 1954, the words 2 & 3 Eliz. 2. from “ and as ” onwards (which make provision superseded by c. xlv. the said subsection (3)) are hereby repealed.

2. This Act may be cited as the Criminal Justice Administration Short title. (Amendment) Act, 1959.

CHAPTER 42

An Act to make provision for an increase in the membership of the disciplinary committee constituted under section forty-six of the Solicitors Act, 1957.
[9th July, 1959]

BE it enacted by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Subsection (1) of section forty-six of the Solicitors Act, 1957 (which provides for the appointment of a disciplinary committee by the Master of the Rolls), shall have effect with the substitution of the word “ twelve ” for the word “ nine ”.

Membership of disciplinary committee.
5 & 6 Eliz. 2.
c. 27.